

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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BRUNILDO GUICHARDO,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICERS WILLIAM
CONNICK, SHIELD #9546 AND ADAM JANGEL,
SHIELD #14094 and UNIDENTIFIED NEW YORK
CITY POLICE OFFICERS, EMPLOYEES AND
AGENTS.

Defendants.

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AMENDED COMPLAINT

CIVIL ACTION NO.:
04-CV-5095(ILG)(SMG)

JURY TRIAL DEMANDED

The plaintiff, complaining of the defendants, by his attorney,
THOMAS SHEEHAN, ESQ. of CHEDA & SHEEHAN, respectfully shows to this
Court and alleges:

JURISDICTION

1. Jurisdiction is founded upon the existence of a Federal
Question.

2. This is an action to redress the deprivation under color
of statute, ordinance, regulation, custom, or usage of a right,
privilege, and immunity secured to plaintiffs by the Fourth and
Fourteenth Amendments to the Constitution of the United States (42
U.S.C. § 1983) and arising under the law and statutes of New York.

3. Jurisdiction is founded upon 28 U.S.C. Sections 1331,
1343(3) and 1343(4), this being an action authorized by law to
redress the deprivation under color of law, statute, ordinance,
regulation, custom and usage of a right, privilege, and immunity
secured to plaintiffs by the Fourth and Fourteenth Amendments to the

Constitution of the United States.

4. That venue is proper pursuant to 28 U.S.C. § 1391 (b) (1&2).

5. The matter in controversy exceeds, exclusive of interest and costs, the sum or value of ONE HUNDRED FIFTY THOUSAND (\$150,000.00) DOLLARS.

6. That an award of attorney's fees is appropriate pursuant to 42 U.S.C. § 1988.

PARTIES

7. That the plaintiff, a Hispanic male, is a resident of the United States and he is a resident of the County of Queens, State of New York.

8. Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY OF NEW YORK (NYC), its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT (NYPD), including all the police officers thereof.

10. Upon information and belief, that at all times hereinafter mentioned, defendants POLICE OFFICERS WILLIAM CONNICK, SHIELD #9546 and ADAM JANGEL, SHIELD #14094 and UNIDENTIFIED NEW YORK CITY POLICE OFFICERS, EMPLOYEES AND AGENTS were employed by the defendant, CITY OF NEW YORK, as police officers.

11. The defendant, NYC, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and, as such, is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees including all the police officers thereof and that NYC is vicariously liable for the violations of New York State tort law by its servants, agents and employees via the principle of respondent superior as at all times relevant all defendant officers were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

12. This action arises under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

13. Each and all of the acts of the defendants, alleged herein were done by the defendants, their agents, servants and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state and city.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF**

14. The plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully set forth herein.

15. That starting on June 15, 2004 at about 12:15 AM near the intersection of Parsons Boulevard and 89th Avenue, Queens, New York, the plaintiff was unlawfully assaulted and arrested by the defendants. Plaintiff was punched, thrown to the ground and hit in the back and then falsely charged with resisting arrest and disorderly conduct. Any defendant at the above location, who did not actually assault the plaintiff, witnessed the unlawful assault and arrest and failed to intervene or prevent the unlawful assault and arrest.

16. The defendants their agents, servants and employees wrongfully threatened, assaulted, imprisoned, searched and detained plaintiff, BRUNILDO GUICHARDO, without any right or grounds.

17. As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments of the United States Constitution being more particularly plaintiff's rights: to be secure in his person, house, papers, and effects against unreasonable searches and seizures; to be free of the excessive use of force; not to be deprived of life, liberty, and property without due process of law; and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

18. That the said assault and arrest were caused by the defendants, their agents, servants and employees, without any

warrant or other legal process.

19. That by reason of the assault and other violations of plaintiff's rights, plaintiff was subjected to emotional distress and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer bodily injury and pain in both mind and body.

20. That by reason of the aforesaid, the plaintiff has been damaged in the sum of TWO MILLION (\$2,000,000.00) DOLLARS and is entitled to an award of punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF**

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

22. Defendant NYC, as a matter of policy and practice, has with deliberate indifference failed to adequately discipline, train or otherwise direct police officers concerning the rights of citizens, thereby causing the defendant officers in this case to engage in the unlawful conduct described above.

23. Defendant NYC, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers, including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing defendants in this case, to engage in unlawful conduct.

24. Defendant, NYC as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers, including the defendants in this case, who are aware of

and subsequently conceal violations of the constitutional rights of citizens by other police officers, thereby causing and encouraging police, including the defendants, to engage in unlawful conduct.

25. That the defendant police officers and each of them, separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of NYC and NYPD and the defendants here, separately and in concert, engaged in the illegal conduct above mentioned to the injury of the plaintiff, BRUNILDO GUICHARDO, and deprived plaintiff of his rights under the Constitution of the United States and the laws of the United States.

26. The Police Officers of the defendant NYC and its individual members who are agents, servants and employees of defendants, together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassments, assaults and batteries, unlawful discrimination, false imprisonments and arrests and malicious prosecutions at the time said persons were lawfully and properly partaking in lawful activities in exercising their rights to assemble, travel, demonstrate and petition the government in the City and State of New York, in denial of rights, privileges and immunities guaranteed plaintiff, BRUNILDO GUICHARDO, and other citizens by the Constitution of the United States.

27. This systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, false arrest and false imprisonment and malicious prosecution visited on plaintiff, BRUNILDO GUICHARDO, and other citizens by members of

defendant CITY OF NEW YORK and, acting in concert with persons unknown to plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

28. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendant NYC has not taken any adequate steps nor made any sufficient efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take appropriate disciplinary action against any of their employees or agents.

29. That by reason of the aforesaid violations of the constitution and law by the defendants, their agents, servants and employees, who conspired together to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided him in the Constitution of the United States of America, and provided him in the Constitution of the State of New York, and laws thereto, the defendants, their agents, servants and employees violated 42 U.S.C. sec. 1983 in that the defendants, their agents, servants and employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of NYC and NYPD, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff, thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United

States of America and of the State of New York; was subjected to pain and distress of mind and body, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the plaintiff.

30. That by reason of the aforesaid false arrest, intentional assault and battery, and deprivation of his rights and liberties as guaranteed by the aforementioned constitutions, by the defendants, their agents, servants and employees, acting within the scope of their authority, the plaintiff suffered bodily injuries, he suffered conscious pain and suffering, and that he was otherwise damaged.

31. That by reason of the aforesaid, the plaintiff has been damaged in the sum of TWO MILLION (\$2,000,000.00) DOLLARS and is entitled to an award of punitive damages.

WHEREFORE, plaintiff BRUNILDO GUICHARDO demands judgment against the defendants in the sum of TWO MILLION (\$2,000,000.00) DOLLARS and punitive damages on the First Cause Of Action, TWO MILLION (\$2,000,000.00) DOLLARS on the Second Cause of Action; and reasonable attorneys' fees; together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: April 26, 2005
Queens, New York

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